

**IN THE COURT OF PRINCIPAL JUDGE,
FAMILY COURT AT JAMUI, BIHAR**

MATRIMONIAL CASE NO. -...../ 2023

Kumar Gaurav, male, aged about 37 years, Son of Sri Rajendra Prasad Tiwary, Resident of Flat No. 6A, Global Lavanya Apartment, Booty More, Police Station- Khelgaon, District – Ranchi (Jharkhand)

....Applicant No. 01

Versus

Aparna Kumari, female, aged about 30 years, Wife of Shri Kumar Gaurav, Daughter of Shri Shashi Bhushan Ojha, Presently Posted as Agriculture Coordinator, Sadar Block Agriculture Office at Jamui (Bihar) and Resident of House of Shri Kritya Nand Singh, Malaypur, Police Station- Malaypur, District- Jamui (Bihar)Applicant No. 02

The humble joint petition on behalf of
both the applicants namely Shri Kumar
Gaurav and Smt. Aparna Kumari
respectively under Section 13(B) of the
Hindu Marriage Act, 1955;

MOST RESPECTFULLY SHEWETH :-

(1) That the present joint application is being filed under Section 13(B) of Hindu Marriage Act, 1955 by the applicants for the grant

of decree of divorce, dissolving the marriage of the parties solemnised under the provisions of Hindu Marriage Act, 1955 according to the Hindu rites and rituals.

(2) That no petition for grant of decree of divorce has ever been filed earlier by either of the applicants before this learned court or before any other Court. Also, they have not filed any other application under the aforesaid Act.

(3) That both applicants are by faith Hindu and are governed under the provisions of Hindu Marriage Act, 1955.

(4) That the parties to this petition are husband and wife and their marriage was solemnised on 02.03.2020 at CD 215, Sector- 3, Golchakkar, H.E.C. Colony, Dhurwa, Hatia, Ranchi (Jharkhand) according to Hindu rites and rituals. It will be imperative to state here that both the applicants were unmarried before this marriage.

(A copy of marriage photograph and
marriage card is annexed herewith and
is marked as **Annexure- I.**)

(5) That after the solemnization of the marriage between the applicants, the Applicant No. 2 came to the house of the Applicant No. 1 situated at Ranchi (Jharkhand) and immediately thereafter both the applicants went to Jamui (Bihar) where the Applicant No.

02 was posted as Agriculture Coordinator at Sadar Block Agriculture Office at Jamui (Bihar).

- (6) That after few days of the marriage, the relations between the parties started deteriorating and consequently became strained. During their stay together as husband and wife they could not adjust with each other mentally and physically despite their keen interest and best efforts to do so.
- (7) That after the marriage, both the applicants could not understand each other and were not able to lead a happy married life in spite of their best efforts.
- (8) That even the efforts of friends and relatives of both the sides to reconcile the parties proved futile. During their stay, differences arose due to non-compatibility in their aims and in their mental attitudes.
- (9) That Applicant No. 2 namely Smt. Aparna Kumari had instituted an FIR being Malaypur P.S. Case No. 05 of 2022, dated 11.01.2022 (General Register No. 449 of 2022) against Shri Kumar Gaurav (Applicant No. 01), his parents namely Shri Rajendra Prasad Tiwari, & Smt. Sanyukta Tiwary and sister-inlaw namely Smt. Riya Kumari instituted for the offence punishable under Sections 498(A), 313, 307, 504, 506, 380, 34 of the Indian Penal Code, 1860 and under Section 3/4 of the Dowry Prohibition

Act, 1959. In the aforesaid criminal case, charge sheet has been submitted by the police against all the accused persons under Sections 498(A), 313, 307, 504, 506, 380, 34 of the Indian Penal Code, 1860 and under Section 3/4 of the Dowry Prohibition Act, 1959 and pursuant to the submission of the Charge Sheet, the learned C.J.M., Jamui by an order dated 18.07.2022 has taken cognizance for the offences punishable under Sections 498(A), 313, 307, 380, 504, 506 read with Section 34 of the Indian Penal Code, 1860 and under Section 3/4 of the Dowry Prohibition Act, 1961 against all the accused persons.

(10) That Applicant No. 1 namely Shri Kumar Gaurav has lodged two departmental complaints before D.A.O., Jamui, dated- 22/10/2022 and Lok Shikayat Niwaran Padadhikari, Jamui dated- 02/11/2022 as well against Smt. Aparna Kumari which is in process and he has also filed Criminal Misc. Case No.-1780/2023 dated -21/12/2022 for quashing the F.I.R of Malaypur P.S. case No.-05/2022 and Smt. Sanyuakta Tiwary & others have also filed Cri. Misc. Case No.—5399/2023 dated-21/12/2022 for quashing the F.I.R of Malaypur P.S. Case No.-05/2022 before the Hon'ble High Court at Patna.

(11) That apart from the aforesaid cases, none of the applicants had instituted any other civil or criminal cases against each other,

or their respective family members or relatives, in any court or at any Police Station or at any other Forum.

(12) That the learned Sessions Judge, Jamui had made an effort to mediate the differences between the parties during the course of hearing of the bail application of the Applicant No. 01 in connection with Malaypur P.S. Case No. 05 of 2022, dated 11.01.2022 (General Register No. 449 of 2022). The effort made by the learned Sessions Judge has failed.

(13) That the Applicant No. 01 namely Shri Kumar Gaurav has preferred bail in connection with Malaypur P.S. Case No. 05 of 2022, dated 11.01.2022 (General Register No. 449 of 2022) vide Cr. Misc. No. 35704 of 2022 titled as Kumar Gaurav Versus The State of Bihar before the Hon'ble Patna High Court. The case was listed before the bench of Hon'ble Mr. Justice Alok Kumar Pandey. During this period, mediation was conducted outside the court wherein both the applicants have mutually decided to put an end to all disputes arising out of their matrimonial relationship and than the Hon'ble justice had been pleased to grant provisional bail to Applicant No.-01 on 21/07/2022 and after signing the memorandum of understanding of both the party on 12/02/2023 his provisional bail was confirmed by order dated 22/02/2023

treating the memorandum of understanding to be part and parcel of the order.

(Web Copy of order dated 22/02/2023 passed in Cr. Misc. No.-35704/2022 is attached herewith and is marked as Annexure-II)

(14) That consequently, a Memorandum of Understanding dated 12.02.2023 was drawn up with the mutual consent of the applicants which incorporates the terms and conditions of the settlement arrived at between the parties.

(A copy of Memorandum of Understanding dated 12.02.2023 is annexed herewith and is marked as **Annexure- III.**)

(15) That both the Petitioner and Opposite Party have compromised their dispute outside the court with the advice and intervention of their well wishers. As per the compromise, both Petitioner and Opposite Party have agreed on the following terms and Conditions:-

- i. Both the parties shall jointly file a petition seeking a decree of dissolution of marriage by mutual consent under Section 13(B) of the Hindu Marriage Act, 1955 within a period of 30 days of signing of this MOU/agreement.
- ii. Both the parties after the filing of petition under Section 13(B) of the Hindu Marriage Act, 1955 seeking divorce by mutual

consent, they shall voluntarily and unconditionally withdraw/compound/give no objection to end aforesaid mentioned cases and complaints filed against each other including the prosecution filed against each other or their family members before any court/authority.

iii. Both parties shall assist each other in prudently pursuing the petition for dissolution of marriage by mutual consent and shall appear in the concerned court in the jurisdiction of Jamui as and when necessary and required to record a necessary statement as per law in getting the decree of divorce by mutual consent.

iv. The marital dispute between the parties has given rise to Malaypur P.S. Case No. 05 of 2022, dated 11.01.2022 (General Register No. 449 of 2022) instituted for the offence punishable under Sections 498(A), 313, 307, 504, 506, 380, 34 of the Indian Penal Code, 1860 and under Section 3/4 of the Dowry Prohibition Act, 1959. Smt. Aparna Kumari has agreed to withdraw and/or compound in a legal manner her litigations filed by way of F.I.R being Malaypur P.S. Case No. 05 of 2022, dated 11.01.2022 (General Register No. 449 of 2022) against Shri Kumar Gaurav, his parents namely Shri Rajendra Prasad Tiwary, & Smt. Sanyukta Tiwary and sister-in-law

namely Smt. Riya Kumari instituted for the offence punishable under Sections 498(A), 313, 307, 504, 506, 380, 34 of the Indian Penal Code, 1860 and under Section 3/4 of the Dowry Prohibition Act, 1959 and Kumar Gaurav has also agreed to withdraw his all complaints against Smt. Aprna Kumari in legal manner.

- v. Both parties shall take necessary action on their part within a period of thirty days from the date of filing of the divorce application for the aforesaid withdrawal or compounding of offence.
- vi. Both the parties shall not continue any of the subject litigation against each other henceforth and will cooperate with each other in a legal manner so that the aforesaid pending subject-litigation can be withdrawn and/or disposed of.
- vii. Shri Kumar Gaurav shall withdraw and not proceed with any departmental complaint as against Smt. Aparna Kumari.
- viii. Smt. Aparna Kumari has agreed to make a return of the original Passport of Shri Kumar Gaurav at the time of the execution of the present Memorandum.
- ix. Shri Kumar Gaurav shall make a transfer of the ownership of the scooty in favour of Smt. Aparna Kumari bearing

registration no. BR46K4163 at the time of the execution of the present Memorandum.

- x. Both the parties shall not file any further appeal, review or revision, complaint etc. against any order of allowing withdrawal/non-prosecution passed by any Court of Law in the subject - litigation.
- xi. Shri Kumar Gaurav has agreed to give Rs. 12,25,000/- (rupees twelve lacs twenty five thousand only) vide D.D No.-, Dated-..... as permanent alimony for past, present and future maintenance.

A demand draft of the agreed amount of permanent alimony i.e. Rs. 12,25,000/- (rupees twelve lacs twenty five thousand only) drawn in favour of Aparna Kumari shall be deposited by Shri Kumar Gaurav along with the mutual application seeking divorce before the Principal Judge, Family Court at Jamui at the time of filing of the present divorce application.

(original D.D. of Rupees 1225000/- is
attached herewith and is marked as
Annexure-IV)

The parties have agreed that the same shall be handed over to Aparna Kumari by the court of learned Principal Judge,

Family Court at Jamui at the time of the second motion i.e. at the time of the deposition of the evidence of the parties in the mutual divorce application and upon the conclusion of the prosecution brought by her as against Shri Kumar Gaurav and his other family members.

The First Party agrees to re-validate the demand draft in case the same get expired during the pendency of the Mutual Divorce Application.

- xii. Both parties have thus settled all claims regarding maintenance, (past, present and future) permanent alimony, Stridhan or any property or gifts of any nature whatsoever. Accordingly, both the parties do not have any grievance against each other and they have duly and peacefully settled the same to their entire satisfaction.
- xiii. All the matter/dispute/issue has been resolved between the parties to this petition w.r.t all the articles (Gold, Silver etc.) given to each other at the time of marriage and there shall remain no claim qua ornaments or anything, after the signing of the present settlement agreement.
- xiv. Both the parties have agreed to cooperate in seeking quashing of the criminal prosecution/FIR filed by either party or their family members against the other party of their family

members before the Hon'ble High Court, Patna or any other competent court.

- xv. It has been agreed that the legal expenses to be incurred for implementation of all steps concerned with the divorce proceedings, i.e. right from the compromise deed, filing of Divorce with Mutual Consent case, obtaining of the decree of divorce, as the charges of the counsels of both sides, shall be individually and independently borne by the respective parties.
- xvi. Both parties have agreed to settle all their grievances with this MOU/agreement and it is agreed that none of the parties would file any type of litigation, Civil or Criminal, against each other and shall not claim any right in the movable and immovable properties of each other in future.
- xvii. It has also been agreed between the parties to the present agreement/ MOU, that they shall not use, share and upload (in any electronic form or soft or hard form of document) each other's photographs, screen shots, social chats or profile or any video on the Internet/or/any Social Media including any Email, or Gmail, Instagram, Facebook, Facebook messenger, WhatsApp messenger, Snapchat etc. or any personal or private communication against each other which has been left in their possession in any manner in future.

xviii. It is agreed that the parties hereto do not have any grievance left against each other, therefore, in view of the same, they have further undertaken that they shall not level any allegations against each other or each other's parents/relatives or cause to act in a manner so as to harm the reputation and image of the other, in the family or the society at large.

xix. This compromise/MOU is being executed voluntarily and with mutual consent without any fear, pressure, force, fraud, under influence, coercion.

xx. If any of the above parties fails to fulfill their obligations under this MOU then the other party has a legal right to seek their remedies as per law and to reopen the complaints filed by them.

(16) That both the parties adhere to the terms of the settlement as stated above and in the Memorandum of Understanding arrived at between the parties.

(17) That the Applicants have mutually agreed to the statement in compromise in principle, as full and final settlement once and for all with regard to all their differences.

(18) That there is no difference of opinion between the applicants on the issue of dissolution of their marriage, nor with regard to any other subject matter arising out of the present wedlock.

- (19) That both the parties have voluntarily consented for dissolution of their marriage by way of this mutual joint petition.
- (20) That the consent of both the parties is free and has not been obtained on the basis fraud or inducement or threat or pressure.
- (21) That both applicants have given their consent in healthy state of mind keeping in mind their future life.
- (22) That the marriage between the applicants has broken down irretrievably and there is no chance of reconciliation.
- (23) That under the aforesaid circumstances this joint application for divorce may kindly be accepted and a decree of divorce may be passed under the terms of joint compromise petition considering the future of both applicants.
- (24) That in view of the compromise entered into by and between the parties and in the light of the joint compromise petition, the divorce suit is required to be disposed of by making this compromise petition as part of the final order/decreed.
- (25) That with the intervention of well wishers of both parties, all the disputes and grievances between the applicants have been solved without having any grudge. Both are ready for divorce at the earliest.

(26) That there is no collusion or connivance between the applicants in filing this petition.

(27) That all effort of at mediation and reconciliation has been tried and failed.

(28) That there is no chance of reconciliation between the parties.

(29) That the marriage between the parties has irretrievably broken down.

(30) That there is no chance of any reunion of the parties.

(31) That there is no chance of any fresh rehabilitation.

(32) That the marriage between the parties has become purposeless.

(33) That any further waiting period in obtaining divorce will only prolong their agony.

(34) That there is no child out of the wedlock between the parties and none are expected.

(35) That both the applicants have lastly resided together at the rental accommodation at the residence of the Applicant No. 2 which is situated at House of Shri Kritya Nand Singh, Malaypur, Police Station- Malaypur, District- Jamui (Bihar). This learned court has got the jurisdiction to entertain this application for divorce jointly filed by the applicants seeking the relief as aforesaid.

(36) That the court fee fixed and required for grant of the decree of divorce sought in the present petition is being paid.

It is, therefore, prayed that Your Honour may be pleased to grant a decree of divorce by mutual consent in terms as agreed between the parties and in accordance with Section 13(B) of the Hindu Marriage Act, 1955 by dissolving the marriage solemnised between the parties;

AND

Pass such other order or orders as Your Honour may deem fit and proper.

And

for this act of kindness, both parties shall ever pray.

Filed by

Advocate

IN THE COURT OF PRINCIPAL JUDGE,

FAMILY COURT AT JAMUI, BIHAR

MATRIMONIAL CASE NO. / 2023

Kumar Gaurav **Applicant No. 01**

Versus

Aparna Kumari **Applicant No. 02**

VERIFICATION

I, Aparna Kumari, female, aged about 30 years, Wife of Shri Kumar Gaurav, Daughter of Shri Shashi Bhushan Ojha, Presently Posted as Agriculture Coordinator, Sadar Block Agriculture Office at Jamui (Bihar) and Resident of House of Shri Kritya Nand Singh, Malaypur, Police Station- Malaypur, District- Jamui (Bihar) do hereby solemnly affirm and declare that I have gone through the content of the joint mutual petition and found the same as true and correct to best of my knowledge and belief.

IN THE COURT OF PRINCIPAL JUDGE,

FAMILY COURT AT JAMUI, BIHAR

MATRIMONIAL CASE NO. -...../ 2023

Kumar Gaurav**Applicant No. 01**

Versus

Aparna Kumari**Applicant No. 02**

VERIFICATION

I, Kumar Gaurav, male, aged about 37 years, Son of Sri Rajendra Prasad Tiwary, Resident of Flat No. 6A, Global Lavanya Apartment, Booty More, Police Station- Khelgaon, District – Ranchi (Jharkhand) do hereby solemnly affirm and declare that I have gone through the content of the joint mutual petition and found the same as true and correct to best of my knowledge and belief.

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MATRIMONIAL CASE NO.-...../2023

Kumar Gaurav**Applicant No. 01**

Versus

Aparna Kumari**Applicant No. 02**

AFFIDAVIT

I, Aparna Kumari, female, aged about 30 years, Wife of Shri Kumar Gaurav, Daughter of Shri Shashi Bhushan Ojha, Presently Posted as Agriculture Coordinator, Sadar Block Agriculture Office at Jamui (Bihar) and Resident of House of Shri Kritya Nand Singh, Malaypur, Police Station- Malaypur, District- Jamui (Bihar) do hereby solemnly affirm and declare as follows:-

1. That I am the Applicant No. 02 of the instant divorce application and as am well acquainted with the facts and circumstances of the case.
2. That I had gone through the contents of the instant joint petition and this affidavit which I have found true and correct to the best of my knowledge and belief.
3. That the annexure appended with the divorce application are true copies of their respective originals.

**IN THE COURT OF PRINCIPAL JUDGE,
FAMILY COURT AT JAMUI, BIHAR**

MATRIMONIAL CASE NO.-...../2023

Kumar Gaurav**Applicant No. 01**

Versus

Aparna Kumari**Applicant No. 02**

AFFIDAVIT

I, Kumar Gaurav, male, aged about 37 years, Son of Sri Rajendra Prasad Tiwary, Resident of Flat No. 6A, Global Lavanya Apartment, Booty More, Police Station- Khelgaon, District – Ranchi (Jharkhand) do hereby solemnly affirm and declare as follows:-

1. That I am the Applicant No. 01 of the instant divorce application and as am well acquainted with the facts and circumstances of the case.
2. That I had gone through the contents of the instant joint petition and this affidavit which I have found true and correct to the best of my knowledge and belief.
3. That the annexure appended with the divorce application are true copies of their respective originals.